

Court No. - 38

Case :- WRIT - C No. - 29434 of 2018

Petitioner :- Kaushal Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Mahendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Rajiv Gupta,J.

Heard Sri Mahendra Singh, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned Standing Counsel for the Electricity Department.

By means of this writ petition, the petitioner has challenged the Recovery Citation dated 31.05.2008 for a sum of Rs. 2,00,000/-.

The petitioner is a domestic consumer of electricity and disputes the amount. Learned counsel for the petitioner submits that no bill was issued to the petitioner and load has also been enhanced without any notice to the petitioner and therefore, the petitioner disputes the bill.

Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department submits that under Paragraph 16.5 of U.P. Electricity Supply Code, 2005, the petitioner has a remedy of filing a representation before the Executive Engineer.

The writ petition is disposed of with the direction that in case the petitioner files a representation before the respondent no. 4 within a week, the same may be

considered and decided within a period of one month thereafter.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to the Recovery Citation dated 31.05.2008.

Order Date :- 29.8.2018

Arun Gangwar

(Rajiv Gupta, J.) (Abhinava Upadhya, J.)

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RE: Civil Misc. Correction Application No. 2 of 2018.

Heard learned counsel for the applicant.

In paragraph nos. 2 and 6 of the order dated 29.8.2018, where date "31.05.2008" is mentioned, it should now be read as "31.05.2018".

The application is, accordingly, allowed.

Order Date :- 5.9.2018

A. Pt. Singh

(Rajiv Gupta, J.) (Abhinava Upadhya,J.)